2013 APR 23 PM 12:33

Bernard J. Youngblood
Wayne County Register of Deeds
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CERTIFICATE OF TRUST EXISTENCE AND AUTHORITY

Harold C. MacDonald, being duly sworn, hereby states as follows:

1. **Harold C. MacDonald** is a licensed attorney (P16912) and a Member in good standing of the State Bar of Michigan.

2. The following Trust is the subject of this Certificate and this Certificate is furnished pursuant to M.C.L. 565.432:

   SHIRLEY A. RHEAUME, Trustee or her successors in trust, under the SHIRLEY A. RHEAUME LIVING TRUST, dated August 19, 2011, as may be now or hereafter amended.

3. **SHIRLEY A. RHEAUME** died on February 27, 2013.

4. The name and address of the Grantor and the currently acting Trustees are as follows:

Grantor	Trustee(s)		
SHIRLEY A. RHEAUME (deceased) **14552 Riverside Street** **Livonia, Michigan 48154**	**JEAN M. VEACH** **47858 Applewood Dr.** **Chesterfield, MI 48154**	**AND**	**JOAN A. DROZDOWSKI** **14552 Riverside Street** **Livonia, MI 48154**

5. The Trust is the owner of the following described real property:

   Premises situated in the City of Livonia, County of Wayne, and State of Michigan, to wit:

   Lot 52 of Wildwood Forest Subdivision, according to the Plat thereof as recorded in Liber 96, Pages 98, 98 and 100, Wayne County Records.

   Commonly known as: 14552 Riverside, Livonia, Michigan 48154
   Tax I.D. No. 082-06-0052-000

6. The powers of the trustee or trustees relating to real property or any interest in real property are stated in Article Thirteen, Sections 3(l) and (t) of **SHIRLEY A. RHEAUME LIVING TRUST,** dated August 19, 2011, and read as follows:

   "l. Mortgage Powers

   The Trustee shall have the power to enter into any mortgage whether as a mortgagee or mortgagor, to purchase mortgages on the open market, and to otherwise buy, sell, or trade in first or subordinate mortgages.

   The Trustee may reduce the interest rate on any mortgage and consent to the modification or release of any guaranty of any mortgage.

   The Trustee may continue mortgages upon and after maturity with or without renewal or extension, and may foreclose any mortgage. The Trustee may purchase the mortgaged property or acquire it by deed from the mortgagor without foreclosure."

"t. **Real Estate Powers**

The Trustee may sell, convey, transfer, exchange, convert or otherwise dispose of real estate, at public or private sale, with or without security, in such manner, at such time or times, for such purposes, for such prices, and upon such terms, credits and conditions as the Trustee may deem advisable.

The Trustee may make leases and grant options to lease for any term, even though the term may extend beyond the termination of any trust created under this agreement.

The Trustee may grant or release easements and other interests with respect to real estate, enter into party wall agreements, execute estoppel certificates, and develop and subdivide any real estate.

The Trustee may dedicate parks, streets, and alleys or vacate any street or alley, and may construct, repair, alter, remodel, demolish, or abandon improvements.

The Trustee may elect to insure, as it deems advisable, all actions contemplated by this subsection.

The Trustee may take any other action reasonably necessary for the preservation of real estate and fixtures comprising a part of the trust property or the income therefrom."

7. Pursuant to Article Fourteen, Section 9, the **SHIRLEY A. RHEAUME LIVING TRUST,** dated August 19, 2011, is governed by the laws of the State of Michigan. Article Fourteen, Section 9 states:

"SECTION 9. TRUST SITUS/APPLICABLE STATE LAW

Except as otherwise provided in this sub-paragraph, the validity, construction, administration, meaning and effect, and all rights of beneficiaries under this Agreement (and any other instrument related thereto) shall be governed by the laws of the State of Michigan without regard to its conflicts of law principles; provided, however, that all matters pertaining to the Trustee's administration of real property shall be governed by the laws of the situs of such real property, including such jurisdiction's conflict of law principles. The administration, construction, meaning and effect, and rights of beneficiaries under a trust established by the exercise of a power of appointment granted hereunder shall be governed by the laws of whatever jurisdiction may be designated either in such instrument of appointment or in the resulting trust (or, absent such designation, by the laws of the State of Michigan). This Section shall apply regardless of any change of residence of any Trustee or any beneficiary, or the appointment or substitution of a Trustee residing in another jurisdiction. The Trustee may, with the written consent of a majority of the trust's current income beneficiaries who are not incapacitated, change the situs of such trust and elect to have the validity, construction, administration, meaning and effect or rights of beneficiaries of such trust be governed by the laws of another jurisdiction, in or outside the United States (including that jurisdiction's law concerning the maximum duration of trusts). The Trustee may not change the situs of a trust or the trust's governing law in order to limit its existing liability to the beneficiaries. The jurisdiction whose laws govern the validity, construction, administration, meaning and effect, and rights of beneficiaries of any trust may, but need not, be the same as the situs of the administration of such trust. This Agreement shall be exempt from mandatory registration (although the Trustee may, in its discretion register any trust). Unless otherwise consented to by the current income beneficiaries of the trust in question or by any Trust Protector of the trust in question, no personal shall serve as a Trustee if to do so would result in the trust being: (i) classified as a "foreign trust" under the Internal Revenue Code, and (ii) subjected to greater or additional taxation as a result of such classification."

8. **Reliance.** This certificate of trust correctly recites the current status of the **SHIRLEY A. RHEAUME LIVING TRUST, dated August 19, 2011** and is made in accordance with the provisions of MCL 565.431 et. seq., to induce Title Company to issue a title insurance policy insuring an interest in the real property described in this certificate.

9. The Trust is currently in full force and effect and has not been amended, revoked or modified in any manner which would cause the representations made herein to be incorrect.

10. The signatory of this Certificate declares that the preceding statements and the incorporated Trust provisions are true and correct to the best of his knowledge, under penalty of perjury.

11. This Certificate is dated April 12, 2013.

Witnessed by:

Laurie A. Lopez

Lynda Wallace

Harold C. MacDonald

STATE OF MICHIGAN)
) SS.
COUNTY OF MACOMB)

Signed and sworn to before me in Macomb County, Michigan on April 12, 2013, by **Harold C. MacDonald**.

Lynda Wallace, Notary Public
State of Michigan, County of Macomb
My Commission Expires: 7/05/2017
Acting in the County of Macomb

When recorded return to:
Harold C. MacDonald
6900 Miller Dr., Suite 111
Warren, MI 48092

Drafted by:
Law Offices of Harold C. MacDonald, P.L.L.C.
6900 Miller Dr., Suite 111
Warren, MI 48092